Persistent

NSE & BSE / 2026-27 / Scheme / 001

June 29, 2026

The Manager,
Corporate Services,
National Stock Exchange of India Limited
Exchange Plaza, Bandra Kurla Complex,
Bandra (E),
Mumbai 400 051

Ref: Symbol: PERSISTENT

The Manager,
Corporate Services,
BSE Limited
P J Towers, Dalal Street,
Mumbai 400 001

Ref: Scrip Code: 533179

Dear Sir/Madam,

Sub.: Disclosure under Regulation 37(6) of the Securities and Exchange Board of (Listing Obligations and Disclosure Requirements) Regulations, 2015
Ref. : Our earlier letter under Ref. No. NSE & BSE / 2026-27 / 051 dated June 8, 2026

In terms of Regulation 37(6) of the SEBI (Listing Obligations and Disclosure Requirements)Regulations, 2015, we wish to submit the Draft Scheme of Merger of M/s. MediaAgility India Private Limited (Wholly Owned Subsidiary – Transferor Company) by absorption into Persistent Systems Limited (Holding Company – Transferee Company) as approved by the Board of Directors on June 8, 2026 (IST) subject to the receipt of necessary approvals through the National Company Law Tribunal route.

This is for your information and records.

Please acknowledge the receipt.

Thanking you,

Yours sincerely,

For **Persistent Systems Limited**

Amit Murari Atre
Digitally signed by Amit Murari Atre
Date: 2026.06.29 20:10:36 +05'30'

Amit Atre
Company Secretary
ICSI Membership No.: ACS 20507

Enclosures:
1. Draft Scheme of Merger
2. Certified Copy of the Board Resolution of the Transferor Company
3. Certified Copy of the Board Resolution of the Transferee Company

DRAFT SCHEME OF MERGER BY ABSORPTION

MEDIAAGILITY INDIA PRIVATE LIMITED

(TRANSFEROR COMPANY)

AND

PERSISTENT SYSTEMS LIMITED

(TRANSFEREE COMPANY)

AND

THEIR RESPECTIVE SHAREHOLDERS

UNDER SECTIONS 230 TO 232 AND OTHER APPLICABLE PROVISIONS OF THE COMPANIES ACT, 2013 AND RULES FRAMED THEREUNDER

This Scheme of Merger by Absorption ("Scheme of Merger" or "the Scheme") is presented under Sections 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act 2013 and rules framed thereunder (including any statutory modification(s) or re-enactment(s) or amendment(s) thereof), as may be applicable, for the Merger by Absorption of MediaAgility India Private Limited (hereinafter referred to as 'Transferor Company') with Persistent Systems Limited (hereinafter referred to as 'Transferee Company') and effective such merger, the dissolution of Transferor Company without winding up.

Parts of the Scheme:

The Scheme of Merger by Absorption is divided into the following three parts:

(i) **Part I** – Deals with the Description of Companies, Rationale of the scheme, definitions, interpretations, and share capital;

Certified True Copy
For Persistent Systems Limited
Amit Atre
Company Secretary
ICSI Membership Number: ACS 20507

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(ii) **Part II**– Deals with the Merger by Absorption of MediaAgility India Private Limited with Persistent Systems Limited;

(iii) **Part III** – Deals with the General Clauses, the dissolution of the Transferor Company, and Terms and Conditions applicable to the Scheme.

PART I

A. Description of the Companies:

i. Transferor Company

MediaAgility India Private Limited ("Transferor Company") is a private limited company incorporated on 16th November, 2010 under the Companies Act, 1956 under the name MediaAgility India Private Limited'. The Registered Office of the Transferor Company is situated at 'Bhageerath', Vetal Chowk, 402 E Senapati Bapat Road, Gokhale Nagar, Pune, Haveli, Maharashtra, India, 411016 [CIN: U72200PN2010PTC256429]. The Transferor Company is engaged in the business of brand agility-product for social media brand monitoring to scan multiple data sources based on keywords, cell agility-mobile platform to deliver mobile optimized websites and provide mobile application development services for iphone, ipad, android, blackberry and Nokia platforms, web agility-consulting services to increase the effectiveness of clients' websites and integrate their social media presence, and adagility-search engine marketing and supporting clients' advertisement operations, including consulting services to improve ad revenues etc. The Transferor Company is a wholly owned subsidiary of the Transferee Company.

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ii. **Transferee Company**

Persistent Systems Limited ("Transferee Company") is a public limited company incorporated on 30th May 1990 under The Companies Act, 1956. The registered office of the Transferee Company is at 'Bhageerath', 402 Senapati Bapat Road, Pune, Maharashtra, India, 411016 [CIN: L72300PN1990PLC056696]. The Transferee Company is engaged in the business of 'to design, develop, manufacture, maintain, market, evaluate, benchmark, advice, consult, buy, sell, distribute, trade, deal in, import, export, lease, hire, educate in India or abroad in computer software, firmware & hardware systems and products for various applications covering mainly commercial, industrial, educational, scientific research, agricultural, medical and defence areas.'

The Equity Shares of the Transferee Company are listed on the BSE Limited ("BSE") and National Stock Exchange of India Limited ("NSE").

B. Rationale of the Scheme:

i. With a view to maintain a simple corporate structure, to take effect of synergy gains and eliminate duplicate corporate procedures, it is desirable to merge and amalgamate all the undertakings of Transferor Company into Transferee Company. They belong to the same group, wherein Transferor Company is a wholly owned subsidiary of the Transferee company. Also, the companies are in similar line of business. The amalgamation of all undertaking of Transferor Company into the Transferee Company shall facilitate consolidation of all the undertakings in order to enable effective management and unified control of operations. Further, the amalgamation

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would create economies in administrative and managerial costs by consolidating operations and would substantially reduce duplication of administrative responsibilities and multiplicity of records and legal and regulatory compliances.

ii. Accordingly, this Scheme of Amalgamation ("Scheme") is being presented for amalgamation of the Transferor Company with the Transferee Company and for various other matters consequential, supplemental, and/ or otherwise integrally connected therewith pursuant to Sections 230 to 232 and other relevant provisions of the Companies Act, 2013.

C. Definitions, Interpretation and Share Capital

1) Definitions and Interpretation

In this Scheme, unless repugnant to the meaning or context thereof, (i) terms defined in the introductory paragraphs and recitals shall have the same meanings throughout this Scheme and (ii) the following words and expressions, wherever used (including in the recitals and the introductory paragraphs above), shall have the following meanings:

1.1. **'Act'** or **'the Act'** means the Companies Act, 2013 and Rules, regulations, orders, circulars and notifications made thereunder, including any statutory modifications, re-enactments or amendments thereof for the time being in force.

1.2. **Applicable Law(s)'** means any statute, notification, bye laws, rules, regulations, guidelines, rule or common law, policy, code, directives,

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ordinance, schemes, notices, orders or instructions law enacted or issued or sanctioned by any Appropriate Authority including any modification or re-enactment thereof for the time being in force.

1.3. **'Appointed Date'** For the purpose of this Scheme and for Income Tax Act, 1961, the "Appointed Date" means 01.04.2026 or such other date as may be approved by the Tribunal.

1.4. **'Appropriate Authority'** means any governmental, statutory, regulatory, departmental or public body or authority of India, including the Securities and Exchange Board of India, Stock Exchanges, Registrar of Companies, the Hon'ble National Company Law Tribunal.

1.5. **"Board of Directors" or "Board"** in relation to the Transferor Company and the Transferee Company, as the case may be, means the board of directors of such company, and shall include a committee duly constituted and authorised or individuals authorized for the purposes of matters pertaining to the merger, this Scheme and/or any other consequential or incidental matter relating thereto;

1.6. '**Effective Date**' means the last of the dates on which certified copies of the orders of the Hon'ble National Company Law Tribunal, Mumbai are filed with the Registrar of Companies (RoC), Pune;

1.7. **"Encumbrance"** means any mortgage, pledge, equitable interest, assignment by way of security, any other security, conditional sales contract, hypothecation, right of other persons, claim, security interest, encumbrance, title defect, title retention agreement, voting trust agreement, interest, option,

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lien, charge, commitment, restriction or limitation of any nature whatsoever, including restriction on use, voting rights, transfer, receipt of income or exercise of any other attribute of ownership, right of setoff, any arrangement (for the purpose of, or which has the effect of, granting security), or any other security interest of any kind whatsoever, or any agreement, whether conditional or otherwise, to create any of the same and the term "Encumbered" shall be construed accordingly;

1.8. "**Governmental Authority**" means (i) a national or state government, political subdivision thereof; (ii) an instrumentality, board, commission, court, or agency, whether civilian or military, of any of the above, however constituted; and (iii) a government-owned/ government-controlled association, organization in the Republic of India;

1.9. "**IT Act**" means the Income Tax Act, 1961 and/or the Income Tax Act, 2025 as may be amended or supplemented from time to time (and any successor provisions or law), including any statutory modifications or re-enactments thereof together with all applicable by-laws, rules, regulations, orders, ordinances, directions including circulars and notifications and similar legal enactments, in each case issued under the Income-Tax Act, 1961 and/or the Income Tax Act, 2025.

1.10. '**Scheme**' or '**the Scheme**' or '**this Scheme**' or '**the Scheme of Merger**' means this Scheme of Merger by Absorption in its present form as submitted to the Hon'ble National Company Law Tribunal, Mumbai with any modification(s) made under Clause 21 of the Scheme as approved, imposed or directed by the Hon'ble Tribunal or such other competent authority, as may be applicable and accepted by the Parties thereto.

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1.11. **'SEBI'** means the Securities and Exchange Board of India established under the Securities and Exchange Board of India Act, 1992;

1.12. **'Stock Exchange'** means the BSE Limited ("BSE") and National Stock Exchange India Limited ("NSE").

1.13. **'Tribunal'** means the Hon'ble National Company Law Tribunal, Mumbai Bench (hereinafter referred to as "the Tribunal") as constituted and authorized as per the applicable provisions of the Companies Act, 2013 and the proceedings initiated under Sections 230 to 232 of the Companies Act, 2013.

1.14. **"Undertaking"** means all the undertakings and entire business, activities, and operations of the Transferor Company, as a going concern, including, without limitation:

a. all the assets and properties (whether movable or immovable, tangible or intangible, real or personal, in possession or reversion, corporeal or incorporeal, present, future or contingent of whatsoever nature) of the Transferor Company, whether situated in India or abroad, including, without limitation, deferred tax assets, income tax assets (Net) current assets (including inventories, sundry debtors, bills of exchange, loans and advances, security deposit, accrued interest receivables, advances, prepaid expenses, input GST/service tax/excise recoverable), cash and bank accounts (including bank balances in current account, term deposit with bank, cash on hand), contingent rights or benefits, benefits of any deposits, earnest monies, receivables, advances or deposits paid by or deemed to have

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been paid by the Transferor Company, financial assets, benefit of any bank guarantees, performance guarantees and letters of credit,

b. all, tax deducted at source, tax collected at source and advance tax payment, entitlement if any, tax losses and exemptions in respect of the profits of the undertaking of the Transferor Company for the residual period, i.e., for the period remaining as on the Appointed Date out of the total period for which the benefit or exemption is available in law if the merger pursuant to this Scheme does not take place, all other rights including sales tax deferrals and exemptions and other benefits, the input credit balances (including, State Goods & Service Tax ("SGST"), Integrated Goods and Services Tax ("IGST") and Central Goods and Service Tax ("CGST") credits) under the Goods and Service Tax ("GST") laws, contracts and arrangements and all other interests in connection with or relating to the Transferor Company, whether or not so recorded in the books of accounts of the Transferor Company;

c. all debts, borrowings, obligations, duties and liabilities, both present and future, current and non-current (including deferred tax liabilities, contingent liabilities and the Liabilities and obligations under any licenses or permits or schemes) of every kind, nature and description whatsoever and howsoever arising, raised or incurred or utilized, whether secured or unsecured, whether provided for or not in the books of accounts or disclosed in the balance sheet of the Transferor Company; and

d. Any statutory licenses, including relevant licences of Transferor Company, permissions, registrations or approvals or consents held by the Transferor Company required to carry on the operations.

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e. All past and current agreements and contracts signed by the Transferor Company and the renewal thereof.

All terms and words not defined in this Scheme shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the Act and other applicable laws, rules, regulations, bye-laws, as the case may be or any statutory modification or re-enactment thereof for the time being in force.

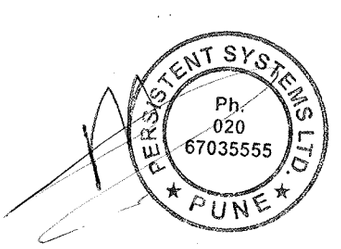
The headings herein shall not affect the construction of this Scheme.

Unless the context otherwise requires:

i. the singular shall include the plural and vice versa, and references to one gender include all genders.

ii. references to a person include any individual, firm, body corporate (whether incorporated), government, state or agency of a state or any joint venture, association, partnership, works council or employee representatives body (whether or not having separate legal personality).

iii. reference to any law or to any provision thereof or to any rule or regulation promulgated thereunder includes a reference to such law, provision, rule or regulation as it may, from time to time, be amended, supplemented or re-enacted, or to any law, provision, rule or regulation that replaces it.



2) **Date of taking effect and operative date:**

The Scheme set out herein in its present form with or without any modification(s) approved or imposed or directed by the Hon'ble Tribunal or any other competent authority, or made as per the Scheme, shall be effective from the Appointed Date and shall be operative from the Effective Date.

Any references in the Scheme to 'upon the Scheme becoming effective' or 'upon this Scheme becoming effective' or 'effectiveness of the Scheme' shall mean the Effective Date.

3) **Share Capital:**

3.1. The share capital of Transferor Company as at 31st March 2026 is as under:

Particulars	Amount (Rupees)
Authorized Capital	
32,60,000 Equity shares of Rs. 10 each	3,26,00,000
Total	**3,26,00,000**
Issued, Subscribed and Paid–up Capital	
32,07,490 Equity Shares of Rs. 10 each	3,20,74,900
Total	

The equity shares of the Transferor Company are not listed on the Stock Exchange or any other stock exchanges. The entire share capital of the Transferor Company is held by the Transferee Company and its nominees. The Transferor Company is a wholly owned subsidiary of Transferee Company.

PERSISTENT SYSTEMS LTD. Ph. 020 67035555 PUNE

Subsequent to 31st March, 2026, and up to the date of approval of this Scheme by the Board of Transferor Company, there has been no change in the stated capital of Transferor Company.

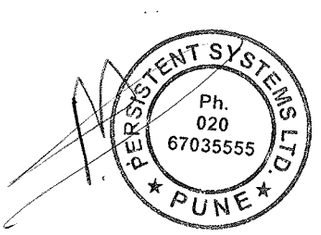
There are no existing commitments, obligations, or arrangements by the Transferor Company as on the date of sanction of this Scheme by the Board of Directors to issue any further shares or convertible securities.

3.2. The share capital of Transferee Company as at 31st March, 2026 is as under:

Particulars	Amount (Rupees)
Authorized Capital	
40,00,00,000 Equity Shares of Rs. 5 each	200,00,00,000
Total	**200,00,00,000**
Issued, Subscribed and Paid – up Capital	
15,77,50,000 Equity Shares of Rs. 5 each	78,87,50,000
Total	**78,87,50,000**

The equity shares of the Transferee Company are listed on BSE and NSE. Subsequent to 31st March 2026 and up to the date of approval of this Scheme by the Board of the Transferee Company, there has been no change in the share capital of the Transferee Company as stated above.

The Transferor Company is a wholly owned subsidiary of the Transferee Company.



There are no existing commitments, obligations or arrangements by the Transferee Company as on the date of approval of this Scheme by the Board of Directors to issue any further shares or convertible securities other than shares covered under various Employee Stock Option Plans (the 'ESOP schemes') of the Transferee Company.

PART II

MERGER OF MEDIAAGILITY INDIA PRIVATE LIMITED WITH PERSISTENT SYSTEMS LIMITED

4) Transfer and vesting:

Upon the coming into effect of this Scheme and with effect from the Appointed Date, pursuant to the sanction of this Scheme by the Tribunal or any other competent authority and pursuant to the provisions of Sections 230 to 232 and other applicable provisions, if any, of the Act, the entire business and whole of the Undertaking of the Transferor Company shall be and stand vested in or be deemed to have been vested in the Transferee Company, as a going concern without any further act, instrument, deed, matter or thing so as to become, as and from the Appointed Date, a part of the undertaking of the Transferee Company by virtue of and in the manner provided in this Scheme.

5) Transfer and Vesting of Assets:

5.1 Without prejudice to the generality of Clause 4 above, upon the coming into effect of this Scheme and with effect from the Appointed Date, all the estate,

PERSISTENT SYSTEMS LTD. Ph. 020 67035555 PUNE

assets, properties, rights, claims, title, interest and authorities including accretions and appurtenances comprised in the Undertaking of Transferor Company of whatsoever nature and where so ever situate shall, under the provisions of Sections 230 to 232 of the Act and all other applicable provisions of Applicable Law, if any, without any further act, instruments, deed, matter or thing, be and stand transferred to and vested in the Transferee Company and/or be deemed to be transferred to and vested in the Transferee Company as a going concern so as to become, as and from the Appointed Date, the estate, assets, properties, rights, claims, title, interest and authorities of the Transferee Company.

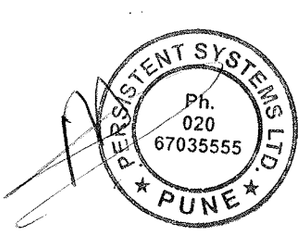
5.2 Without prejudice to the generality of Clause 4 above, upon the coming into effect of this Scheme and with effect from the Appointed Date all immovable properties of the Transferor Company, if any, including land together with the buildings and structures standing thereon and rights and interests in immovable properties of the Transferor Company, whether freehold or leasehold or otherwise, and all documents of title, rights and easements in relation thereto shall be vested in and/or be deemed to have been vested in the Transferee Company, without any further act, instrument or deed done or being required to be done by the Transferor Company and/or the Transferee Company. The Transferee Company shall be entitled to exercise all rights and privileges attached to such immovable properties and shall be liable to pay the ground rent and Taxes and fulfil all obligations in relation to or applicable to such immovable properties. The mutation or substitution of the title to the immovable properties shall, upon this Scheme becoming effective, be made and duly recorded in the name of the Transferee Company by the appropriate authorities pursuant to the sanction of this Scheme by the Tribunal and upon the coming into effect of this Scheme in accordance with the terms hereof.

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5.3 Without prejudice to the provisions of Clause 5.1 above, in respect of such of the assets and properties of the Transferor Company as are movable in nature including cash in hand or incorporeal property or are otherwise capable of vesting or transfer by delivery or possession, or by endorsement and/or delivery, the same shall stand so transferred or vested by the Transferor Company upon the coming into effect of this Scheme, and shall, become the assets and property of the Transferee Company with effect from the Appointed Date pursuant to the provisions of Sections 230 to 232 of the Act, without requiring any deed or instrument of conveyance for transfer or vesting of the same.

5.4 In respect of such of the assets and properties belonging to the Transferor Company (other than those referred to in Clause 5.2 above) including sundry debtors, receivables, bills, credits, loans and advances, if any, whether recoverable in cash or in kind or for value to be received, bank balances, investments, earnest money and deposits with any government, quasi government, local or other authority or body or with any company or other person, the same shall stand transferred to and vested in the Transferee Company and/or be deemed to have been transferred to and vested in the Transferee Company, without any further act, instrument or deed, cost or charge and without any notice or other intimation to any third party, upon the coming into effect of this Scheme and with effect from the Appointed Date pursuant to the provisions of Sections 230 to 232 of the Act.

5.5 All assets, rights, title, interest, investments and properties of the Transferor Company as on the Appointed Date, whether or not included in the books of the Transferor Company, and all assets, rights, title, interest, investments and



properties, which are acquired by the Transferor Company on or after the Appointed Date but prior to the Effective Date, shall be deemed to be and shall become the assets, rights, title, interest, investments and properties of the Transferee Company, and shall under the provisions of Sections 230 to 232 and all other applicable provisions, if any, of the Act, without any further act, instrument or deed, be and stand transferred to and vested in and be deemed to have been transferred to and vested in the Transferee Company upon the coming into effect of this Scheme and with effect from the Appointed Date or from the date of ~~their~~ aforesaid acquisition (after the Appointed Date but before the Effective Date) as the case may be, pursuant to the provisions of Sections 230 to 232 of the Act.

5.6 Upon the coming into effect of the Scheme, and with effect from the Appointed Date, all the profits/losses or income taxes (including but not limited to advance tax, tax deducted at source, tax collected at source, deferred tax), all input credit balances (including but not limited to SGST, IGST and CGST credits under the GST laws) or any costs, charges, expenditure accruing to the Transferor Company in India or expenditure or losses arising or incurred or suffered by the Transferor Company shall for all purpose be treated and be deemed to be and accrue as the profits/losses taxes (including but not limited Advance tax, Tax deducted at source, Tax collected at source, deferred tax,), tax losses, , income, costs, charges, expenditure or losses of Transferee Company, as the case may be.

5.7 All licenses, permits, registrations, quotas, entitlements, approvals, permissions, incentives, tax deferrals, exemptions and benefits, subsidies, concessions, grants, rights, claims, , special status and other benefits or privileges enjoyed or conferred upon or held or availed of by the Transferor

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Company, if any, and all rights and benefits that have accrued or which may accrue to the Transferor Company, whether on, before or after the Appointed Date, including income tax benefits and exemptions, shall, under the provisions of Sections 230 to 232 of the Act and all other applicable provisions, if any, without any further act, instrument or deed, cost or charge be and stand transferred to and vest in and/or be deemed to be transferred to and vested in and be available to the Transferee Company so as to become the licenses, permits, registrations, quotas, entitlements, approvals, permissions, incentives, tax deferrals, exemptions and benefits, subsidies, concessions, grants, rights, claims, liberties, special status and other benefits or privileges of the Transferee Company and shall remain valid, effective and enforceable on the same terms and conditions. In so far as the various incentives, subsidies, rehabilitation scheme, special status and other benefits or privileges enjoyed, granted by any Governmental Authority or by any other person, or availed by the Transferor Company, are concerned, the same shall vest with and be available to the Transferee Company on the same terms and conditions as applicable to the Transferor Company, as if the same had been allotted and/ or granted and/ or sanctioned and/ or allowed to the Transferee Company.

5.8 For avoidance of doubt and without prejudice to the generality of any applicable provisions of this Scheme, it is clarified that with effect from the Effective Date until such times the names of the bank accounts of the Transferor Company would be replaced with that of the Transferee Company, the Transferee Company shall be entitled to operate the bank accounts of the Transferor Company in the name of the Transferor Company in so far as may be necessary. All cheques and other negotiable instruments, payment orders received or presented for encashment which are in the name of the Transferor

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Company after the Effective Date shall be accepted by the bankers of the Transferee Company and credited to the account of the Transferee Company. The Transferee Company shall be allowed to maintain bank accounts in the name of Transferor Company for such time as may be determined to be necessary by the Transferee Company for presentation and deposition of cheques and pay orders that have been issued in the name of the Transferor Company.

6) <u>Contracts, Deeds and other Instruments:</u>

6.1 Upon the coming into effect of this Scheme, and subject to the provisions of this Scheme, all contracts, deeds, bonds, agreements, schemes, arrangements, insurance, letters of Intent, memorandums of understanding, offer letters, undertaking, policies and other instruments of whatsoever nature, if any, to which the Transferor Company is a party or to the benefit of which Transferor Company may be eligible, and which are subsisting or have effect immediately before the Effective Date, shall continue in full force and effect on or against or in favour of, as the case may be, the Transferee Company and may be enforced as fully and effectually as if, instead of the Transferor Company concerned, the Transferee Company had been a party or beneficiary or oblige thereto or thereunder.

6.2 Without prejudice to the other provisions of this Scheme and notwithstanding that vesting of the Undertaking occurs by virtue of this Scheme itself, the Transferee Company may, at any time after the coming into effect of this Scheme, in accordance with the provisions hereof, if so required under any law or otherwise, take such actions and execute such deeds (including deeds of adherence), confirmations or other writings or arrangements with any party

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to any contract or arrangement to which the Transferor Company is a party or any writings as may be necessary in order to give formal effect to the provisions of this Scheme. The Transferee Company shall, after the Effective Date, under the provisions of this Scheme, be deemed to be authorised to execute any such writings on behalf of the Transferor Company and to carry out or perform all such formalities or compliances referred to above on the part of the Transferor Company to be carried out or performed.

6.3 Without prejudice to the generality of the foregoing, upon the coming into effect of this Scheme and with effect from the Appointed Date, all consents, permissions, licenses, certificates, clearances, authorities, powers of attorney given by, issued to or executed in favour of the Transferor Company shall stand transferred to the Transferee Company as if the same were originally given by, issued to or executed in favour of the Transferee Company, and the Transferee Company shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and benefits under the same shall be available to the Transferee Company.

7) Transfer and Vesting of Liabilities:

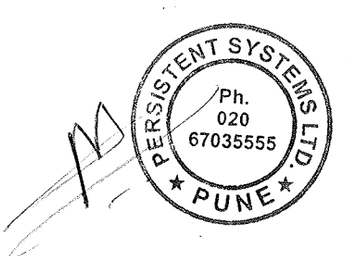
7.1 Upon the coming into effect of this Scheme and with effect from the Appointed Date all debts and liabilities of the Transferor Company, (including contingent liabilities), duties and obligations of the Transferor Company of every kind, nature and description whatsoever whether present or future, shall, pursuant to the sanction of this Scheme by the Tribunal and under the provisions of Sections 230 to 232 of the Act and other applicable provisions, if any, of the Act, without any further act, instrument, deed, matter or thing, be and stand transferred to and vested in and be deemed to have been

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transferred to and vested in the Transferee Company, to the extent they are outstanding on the Effective Date, so as to become as and from the Appointed Date the Liabilities of the Transferee Company on the same terms and conditions as were applicable to the Transferor Company, and the Transferee Company shall meet, discharge and satisfy the same and further it shall not be necessary to obtain the consent of any third party or other person who is a party to any contract or arrangement by virtue of which such Liabilities have arisen in order to give effect to the provisions of this Clause 7.

7.2 Where any such debts, liabilities, duties and obligations of the Transferor Company as on the Appointed Date have been discharged by such Transferor Company on or after the Appointed Date and prior to the Effective Date, such discharge shall be deemed to be for and on account of the Transferee Company upon the coming into effect of this Scheme.

7.3 All loans raised and utilized and all liabilities, duties and obligations incurred or undertaken by the Transferor Company on or after the Appointed Date and prior to the Effective Date, if any, shall be deemed to have been raised, used, incurred or undertaken for and on behalf of the Transferee Company and to the extent they are outstanding on the Effective Date shall, upon the coming into effect of this Scheme and under the provisions of Sections 230 to 232 of the Act, without any further act, instrument or deed be stand transferred to and vested in and be deemed to have been transferred to and vested in the Transferee Company and shall become the loans and liabilities, duties and obligations of the Transferee Company which shall meet, discharge and satisfy the same.

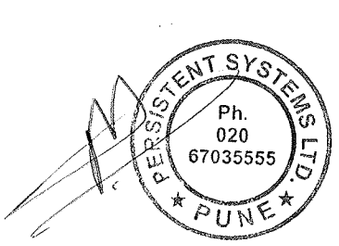


7.4 Loans, advances and other obligations, if any, due or which may at any time from the Appointed Date to the Effective Date become due between the Transferor Company and the Transferee Company shall, ipso facto, stand discharged and come to an end and there shall be no liability in that behalf on any party and the appropriate effect shall be given in the books of accounts and records of the Transferee Company.

8) <u>Encumbrances</u>

8.1 The transfer and vesting of the assets comprised in the Undertaking to the Transferee Company under Clause 4, Clause 5 and Clause 6 of this Scheme shall be subject to the Encumbrances, if any, affecting the same as hereinafter provided.

8.2 All Encumbrances, if any, existing immediately prior to the Effective Date over the assets of the Transferor Company shall, after the Effective Date, without any further act, instrument or deed, continue to relate and attach to such assets or any part thereof to which they are related or attached prior to the Effective Date, provided that if any of the assets of the Transferor Company have not been Encumbered, such assets shall remain unencumbered and the existing Encumbrance referred to above shall not be extended to and shall not operate over such assets. Further, such Encumbrances shall not relate or attach to any of the other assets of the Transferee Company. The absence of any formal amendment which may be required by a lender or trustee or third party shall not affect the operation of the above. Furthermore, no duty (including stamp duty), levy, cess of any nature will be payable by the Transferee Company at the time of transfer of the encumbrance, charge, and/or right covered above with respect to the immovable property.

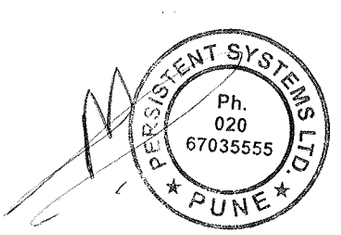


8.3 The existing Encumbrances over the other assets and properties of the Transferee Company or any part thereof which relate to the Liabilities of the Transferee Company prior to the Effective Date shall continue to relate to such assets and properties and shall not extend or attach to any of the assets and properties of the Transferor Company transferred to and vested in the Transferee Company by virtue of this Scheme.

8.4 Upon the coming into effect of this Scheme, the Transferee Company shall be liable to perform all obligations in respect of the Liabilities, which have been transferred to it in terms of this Scheme.

8.5 It is expressly provided that, save as herein provided, no other term or condition of the Liabilities transferred to the Transferee Company is amended by virtue of this Scheme except to the extent that such amendment is required statutorily.

8.6 The provisions of this Clause 8 shall operate notwithstanding anything to the contrary contained in any instrument, deed or writing or the terms of sanction or issue or any security document; all of which instruments, deeds or writings or the terms of sanction or issue or any security document shall stand modified and/or superseded by the foregoing provisions.



PART III

GENERAL CLAUSES, DISSOLUTION OF TRANSFEROR COMPANY AND TERMS AND CONDITIONS APPLICABLE TO THE SCHEME

9) Employees of Transferor Company

9.1 Upon the coming into effect of this Scheme, all Employees of the Transferor Company shall become the employees of the Transferee Company, on same terms and conditions and shall not be less favorable than those on which they are engaged by the Transferor Company and without any interruption of or break in service as a result of the merger of the Transferor Company with the Transferee Company. For the purpose of payment of any compensation, gratuity, superannuation and other terminal benefits, the past services of such Employees with the Transferor Company and such benefits to which the Employees are entitled in the Transferor Company shall also be taken into account, and paid (as and when payable) by the Transferee Company.

9.2 It is clarified that save as expressly provided for in this Scheme, the Employees who become the employees of the Transferee Company by virtue of this Scheme, shall not be entitled to the employment policies and shall not be entitled to avail of any schemes and benefits (including employee stock options) that may be applicable and available to any of the other employees of the Transferee Company (including the benefits of or under any Employee Stock Option Schemes applicable to or covering all or any of the other employees of the Transferee Company), unless otherwise determined by the

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Transferee Company. The Transferee Company undertakes to continue to abide by any agreement/settlement, if any, entered into or deemed to have been entered into by the Transferor Company with any employee of the Transferor Company.

9.3 Insofar as the provident fund, gratuity fund, superannuation fund, retirement fund, contribution towards employee state insurance fund, labour welfare fund and any other funds or trusts created or existing or benefits created by the Transferor Company for its Employees or to which the Transferor Company is contributing for the benefit of its Employees (collectively referred to as the "Funds") are concerned, the Funds or such part thereof as relates to the Employees (including the aggregate of all the contributions made to such Funds for the benefit of the Employees, accretions thereto and the investments made by the Funds in relation to the Employees) shall be transferred to the Transferee Company and shall be held for the benefit of the concerned Employees. In the event the Transferee Company has its own funds in respect of any of the employee benefits referred to above, the Funds shall, subject to the necessary approvals and permissions and at the discretion of the Transferee Company, be merged with the relevant funds of the Transferee Company. In the event that the Transferee Company does not have its own funds in respect of any of the above or if deemed appropriate by the Transferee Company, the Transferee Company may, subject to necessary approvals and permissions, maintain the existing funds separately and contribute thereto until such time that the Transferee Company creates its own funds, at which time the Funds and the investments and contributions pertaining to the Employees shall be merged with the funds created by the Transferee Company.

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9.4 In relation to those Employees for whom the Transferor Company is making contributions to the government provident fund or other employee benefit fund, the Transferee Company shall stand substituted for the Transferor Company, for all purposes whatsoever, including relating to the obligation to make contributions to the said fund in accordance with the provisions of such fund, bye laws, etc. in respect of such Employees, such that all the rights, duties, powers and obligations of the Transferor Company as the case may be in relation to such schemes/ Funds shall become those of the Transferee Company.

10) Legal, Taxation and other Proceedings

10.1 Upon the coming into effect of this Scheme, all suits, actions, and other proceedings including legal and taxation proceedings, (including before any statutory or quasi-judicial authority or tribunal) by or against the Transferor Company pending on the Effective Date shall be continued and/ or enforced by or against the Transferee Company as effectually and in the same manner and to the same extent as if the same had been instituted by or against the Transferee Company.

10.2 If any suit, appeal, revision or other proceeding of whatever nature by or against the Transferor Company is pending, the same shall not abate or be discontinued or in any way be prejudicially affected by reason of or by anything contained in this Scheme, but the said suit, appeal or other legal proceedings may be continued, prosecuted and enforced by or against Transferee Company, as the case may be, in the same manner and to the same extent as it would or might have been continued, prosecuted and enforced by or against the Transferor Company as if this Scheme had not been made.

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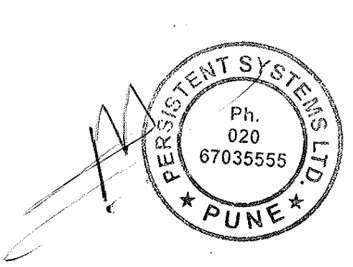
10.3 In case of any litigation, suits, recovery proceedings which are to be initiated or may be initiated against the Transferor Company, Transferee Company shall be made party thereto and any payment and expenses made thereto shall be the liability of Transferee Company.

10.4 All Tax assessment proceedings and appeals of whatsoever nature by or against the Transferor Company, pending or arising as at the Effective Date, shall be continued and/or enforced by or against the Transferee Company in the same manner and to the same extent as would or might have been continued and enforced by or against the Transferor Company. Further, the aforementioned proceedings shall neither abate or be discontinued nor be in any way prejudicially affected by reason of the merger of the Transferor Company with the Transferee Company or anything contained in this Scheme.

11) Conduct of Business until the Effective Date

From the date on which the Boards of Directors of the Transferor Company and the Transferee Company approve this Scheme until the Effective Date:

11.1 the Transferor Company shall carry on and be deemed to have carried on all activities and shall hold and stand possessed of and shall be deemed to hold and stand possessed of all their assets, rights, title, interest, authorities, contracts and investments for and on account of, and in trust for, the Transferee Company;



11.2 The Transferor Company shall carry on their activities with due prudence and diligence and shall not, without prior written consent of the Transferee Company or pursuant to any pre-existing obligation, sell transfer or otherwise alienate, encumber or otherwise deal with any part of their assets nor incur or accept or acknowledge any debt, obligation or liability except as is necessary in the ordinary course of business.

11.3 all profits and income accruing or arising to the Transferor Company, and losses and expenditure arising or incurred by them (including taxes, if any, accruing or paid in relation to any profits or income) for the period commencing from the Appointed Date shall, for all purposes, be treated as and be deemed to be the profits, income, losses or expenditure (including taxes), as the case may be, of the Transferee Company;

11.4 any of the rights, powers, authorities or privileges exercised by the Transferor Company shall be deemed to have been exercised by the Transferor Company for and on behalf of, and in trust for and as an agent of the Transferee Company. Similarly, any of the obligations, duties and commitments that have been undertaken or discharged by the Transferor Company shall be deemed to have been undertaken for and on behalf of and as an agent for the Transferee Company; and

11.5 all taxes (including, without limitation, income tax, deferred tax, Central Goods and Service Tax law (CGST), State Goods and Service Tax law (SGST) and Integrated Goods and Service Tax law (IGST), foreign taxes, etc.) paid or payable by the Transferor Company in respect of the operations and/or the profits of the Transferor Company before the Appointed Date, shall be on account of the Transferor Company and, insofar as it relates to the tax

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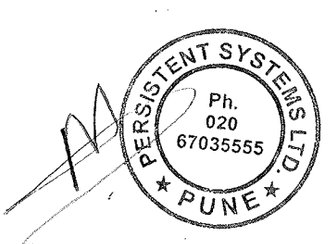
payment (including, without limitation, income tax, deferred tax, CGST, SGST, IGST, foreign taxes, etc.), whether by way of deduction at source, tax collected at source, advance tax or otherwise howsoever, by the Transferor Company in respect of the profits or activities or operation of the Transferor Company with effect from the Appointed Date, the same shall be deemed to be the corresponding item paid by the Transferee Company, and, shall, in all proceedings, be dealt with accordingly.

11.6 If and to the extent there are inter-corporate loans, deposits or balances as between the Transferor Company and Transferee Company, the obligations in respect thereof shall, on and from the Appointed Date, shall stand cancelled and there shall be no obligation/ outstanding balance in that behalf.

11.7 Pending sanction of the Scheme, the Transferor Company shall not, except by way of issue of shares / convertible debentures to the Transferee Company, increase its capital (by fresh issue of shares, convertible debentures or otherwise).

Without prejudice to the provisions of Clauses 4 to 8 and this Clause 10, with effect from the Appointed Date, all inter-party transactions between the Transferor Company and the Transferee Company shall be considered as intra-party transactions for all purposes from the Appointed Date.

11.8 For the avoidance of doubt, it is hereby clarified that nothing in the scheme shall prevent the Transferee Company and / or the Transferor Company from declaring and paying dividends, whether interim or final, to its equity shareholders.



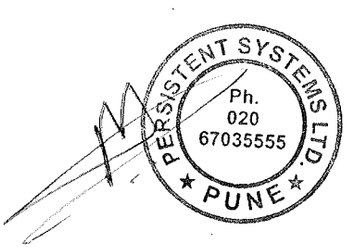
11.9 For the avoidance of doubt, it is hereby further clarified that nothing in the scheme shall prevent the Transferee Company from issuance of bonus shares, rights issue, preferential issue, shares under ESOP schemes, splitting or consolidation of its shares, making investments or undertaking merger or demerger or any other mode of restructuring.

12) Consideration

The Transferor Company is a wholly owned subsidiary of Transferee Company. Accordingly, upon the Scheme becoming effective, no shares of the Transferee Company shall be allotted in lieu or exchange of the holding of the Transferee Company in the Transferor Company (held directly and through nominee shareholder) and the issued and paid-up capital of the Transferor Company shall stand cancelled on the Effective Date without any further act, instrument or deed.

13) Tax Treatment

13.1 This Scheme has been drawn up to comply with the conditions relating to "Amalgamation" as specified under the Tax laws, Including Section 2(1B) of Income Tax Act, 1961 and/or Section 2(6) of Income-tax Act, 2025 and other relevant provisions of the IT Act. If any terms or provisions of this Scheme are found or interpreted to be inconsistent with the provisions of the said provisions at a later date including resulting from an amendment of law with retrospective effect or for any other reason whatsoever, till the time this Scheme becomes effective, the provisions of the said section of the IT Act shall prevail and this Scheme shall stand modified to the extent determined necessary to comply with Section 2(1B) Income Tax Act, 1961 and/or Section 2(6) of Income-Tax Act,



2025 and other relevant provisions of the IT Act, including the provisions of the Section 72A of the Income Tax Act, 1961/ Section 116 of Income Tax 2025. Such modification will however not affect the other parts of this Scheme.

13.2 The Transferee Company shall be entitled to: (a) claim deduction with respect to items such as provisions, expenses, etc., (including but not limited to Section 40, 40A, 43B etc., of the Income-tax Act, 1961 / Section 35, 36, 37, etc. of the Income-tax Act, 2025) disallowed in earlier years in the hands of the Transferor Company, which may be allowable to Transferor Company in accordance with the provisions of the IT Act on or after the Appointed Date: and (b) exclude items such as provisions, reversals, etc., for which no deduction or Tax benefit has been claimed by the Transferor Company prior to the Appointed Date.

13.3 Any TDS deducted by the Transferor Company or Transferee Company on transactions with the Transferee Company / Transferor Company, if any (from Appointed Date to Effective Date) shall be deemed to be advance Tax paid by the Transferee Company and shall, in all proceedings, be dealt with accordingly. Further, for the avoidance of doubt, input Tax credits already availed of or utilised by the Transferee Company and the Transferor Company in respect of transactions between Transferee Company and Transferor Company shall not be adversely impacted by the cancellation of such transactions pursuant to this Scheme.

13.4 Any refund under the IT Act or any other Tax laws related to or due to the Transferor Company, including those for which no credit is taken as on the date immediately preceding the Appointed Date, shall also belong to and be received by the Transferee Company. Upon the Scheme becoming effective, all Taxes,

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Cess, duties and liabilities (direct and indirect), payable by or on behalf of the Transferor Company, shall, for all purposes, be treated as Taxes, cess, duties and liabilities, as the case may be, payable by the Transferee Company. Any tax liability under the IT Act, or any other applicable Tax laws or regulations allocable to the Transferor Company whether or not provided for or covered by any Tax provisions in the accounts of the Transferor Company made as on the date immediately preceding the Appointed Date, shall be transferred to the Transferee Company. Any surplus in the provision for Taxation or duties or levies in the accounts of the Transferor Company, including advance Tax and TDS as on the close of business in India on the date immediately preceding the Appointed Date will also be transferred to the account of the Transferee Company.

13.5 The withholding tax/ advance tax/ minimum alternate tax, if any, paid by the Transferor Company under the Income-tax Act, 1961 / Income-tax Act, 2025 or any other statute in respect of income of the Transferor Company assessable for the period commencing from the Appointed Date shall be deemed to be the tax deducted from/advance tax paid by the Transferee Company and credit for such withholding tax/advance tax/minimum alternate tax shall be allowed to the Transferee Company notwithstanding that certificates or challans for withholding tax/advance tax are in the name of the Transferor Company and not in the name of the Transferee Company.

13.6 In accordance with the GST laws or applicable VAT law provisions and the service Tax law as applicable and prevalent on the Appointed Date, the unutilized credits on inputs/ capital goods/ input services lying in the accounts of the Transferor Company shall be permitted to be transferred to the credit of

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the Transferee Company, as if all such unutilized credits were lying to the account of the Transferee Company.

13.7 Where the Transferor Company is entitled to various benefits under incentive schemes including any export schemes and policies and pursuant to this Scheme it is declared that the benefits under all such schemes and policies shall be transferred to and vest in the Transferee Company and all benefits, entitlements and incentives of any nature whatsoever, shall be claimed by the Transferee Company and these shall relate back to the Appointed Date as if the Transferee Company was originally entitled to all benefits under such incentive scheme and/ or policies, subject to which the benefits under the incentive schemes were made available to the Transferor Company.

13.8 The Transferor and Transferee company shall be entitled to, amongst others, file/ or revise its income tax returns, TDS/TCS returns, GST returns or any other statutory returns, if required, credit for advance tax paid, TDS, claim for sum prescribed under section 43B of the Income-tax Act, 1961/ u/s 37 of the Income Tax Act, 2025 on payment basis, claim for deduction of provision written back which was previously disallowed, credit for tax under section 115JB read with section 115JAA of the Income-tax Act, 1961 / under section 206 of the Income-tax Act, 2025, credit of foreign taxes paid/withheld etc. if any, as may be required consequent to implementation of this Scheme and wherever necessary to give effect to this Scheme, even if the prescribed time limits for filing or revising such returns have lapsed without incurring any liability on account of interest, penalty or any other sum. The transferee company shall have right to claim refunds, tax credits, set- offs and/or adjustments relating to its income or transactions entered into by it by virtue of this Scheme with effect from the Appointed Date. The Option exercised by the Transferor Company under

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Section 115BAA of the Income Tax Act, 1961 shall lapse from the appointed date and the option of the Transferee Company if any under Section 200 of the IT Act 2025 shall continue accordingly.

13.9 All costs, charges, levies, fees, duties and expenses of the Transferor Company and the Transferee Company respectively in relation to or in connection with negotiations leading up to the Scheme and of carrying out and completing the terms and provisions of this Scheme and in relation to or in connection with the Scheme shall be borne and paid by the Transferee Company and the same shall be eligible for deduction of expenditure incurred under section 35DD of the Income Tax Act, 1961 / section 52 of Income-tax Act, 2025.

13.10 The benefits and privileges available to the shareholders of the Transferor Company by virtue of their shareholding in the Transferor Company, including being as a listed company, under the provisions of the Income-tax Act, 1961 / Income Tax Act, 2025 shall continue to be available to the shareholders post the effectiveness of the Scheme including those specifically conferred under the respective provisions of the Income-tax Act, 1961 / Income-tax Act, 2025, grand fathering benefit for the purpose of provisions of Section 112A read with Section 55(2)(ac) of the Income-tax Act, 1961/ Section 198 read with Section 90(7) of the Income-tax Act, 2025, period of holding or any other deduction or concession available or conferred by the provisions of the Income-tax Act, 1961 / Income-tax Act, 2025 or administrative or judicial pronouncements.

14) Accounting Treatment

Notwithstanding anything to the contrary herein, upon the coming into effect of this Scheme and with effect from the appointed date, the amalgamation of

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the Transferor Company with and into the Transferee Company shall be accounted by the Transferee Company in its books of accounts in accordance with Indian Accounting Standards notified under Section 133 of the Companies Act 2013 read with the Companies (Indian Accounting Standards) Rules, 2015 (Ind AS) and other accounting principles generally accepted in India, as follows:

14.1 All the assets and liabilities including reserves of the Transferor Company, transferred to and vested in the Transferee Company pursuant to the scheme shall be recorded in the books of the Transferee Company at their respective carrying amounts and in the same form as appearing in the consolidated financial statements of Transferee Company, being the Holding Company in respect of Transferor Company.

14.2 Inter-company balances and dues, if any, between the Transferor Company and the Transferee Company shall stand cancelled and there shall be no further obligation/outstanding in that behalf.

14.3 In case of any difference(s) in any of the accounting policies between the Transferor Company and Transferee Company, the accounting policies followed by the Transferee Company will prevail and impact of the same will be quantified and adjusted to the revenue reserves of the Transferee Company to ensure that the merged financial statements of the Transferee Company reflect the financial position on the basis of consistent accounting policies.

14.4 The carrying amount of investments held by the Transferee Company represented by the equity share capital of the Transferor Company shall stand cancelled and there shall be no further obligation/outstanding in that behalf.

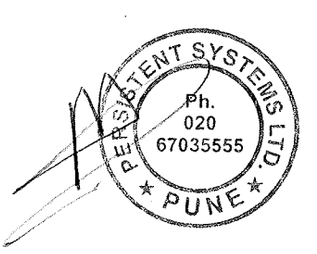
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14.5 The difference, if surplus, between (a) the carrying value of assets, liabilities and reserves pertaining to the Transferor Company recorded as per Clauses 14.1, 14.2 and 14.3 above, and (b) the carrying value of investment in the equity shares of the Transferor Company in the books of accounts of the Transferee Company as per Clause 14.4 above, shall be credited to capital reserve in the books of accounts of Transferee Company and should be presented separately from other capital reserves with disclosure of its nature and purpose in the notes. If the difference is a deficit, then the same shall be adjusted against the existing capital reserve and revenue reserve of the Transferee Company, in that order, and unadjusted remaining amount, if any, shall be recorded separately in amalgamation adjustment deficit account under 'Other Equity'

14.6 The comparative financial information presented in the financial statements of Transferee Company shall be restated as if the amalgamation had occurred from the beginning of the preceding period in the financial statements.

15) <u>Resolutions</u>

Upon the coming into effect of this Scheme, the resolutions, if any, of the Transferor Company, which are valid and subsisting on the Effective Date, shall continue to be valid and subsisting and be considered as resolutions of the Transferee Company and deemed to have authorized any Director of the Transferee Company or such other person(s) as authorized by any two Directors of the Transferee Company to do all acts, deeds, things as may be necessary to give effect to these Resolutions, without any further acts to be done by the Transferee Company and if any such resolutions have any



monetary limits approved under the provisions of the Act, or any other applicable statutory provisions, then the said limits shall be added to the limits, if any, under like resolutions passed by the Transferee Company and shall constitute the aggregate of the said limits in the Transferee Company.

16) Savings of concluded transactions

The transfer and vesting of undertaking, if any, and the continuance of proceedings by or against the Transferor Company, if any, shall not affect any transaction or proceedings already concluded by the Transferor Company on or after the Appointed Date till the Effective Date, to the end and intent that the Transferee Company accepts and adopts all acts, deeds and things done and executed by the Transferor Company in respect thereto, as if done and executed on its behalf.

17) Dissolution of the Transferor Company

Upon the coming into effect of this Scheme, the Transferor Company shall stand dissolved without winding-up without any further act, instrument or deed. On and from the Effective Date, the name of the Transferor Company shall be struck off from the records of the concerned Registrar of Companies.

18) Conditionality to the scheme

a. The effectiveness of the Scheme is conditional upon and subject to:

i. The requisite sanction or approval from Securities and Exchange Board of India, Stock Exchanges, Registrar of Companies, Regional Director,

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Official Liquidator, or any of the Government authority, statutory agencies as may be applicable or as may be directed by the Tribunal or which by law may be applicable for implementation of the Scheme.

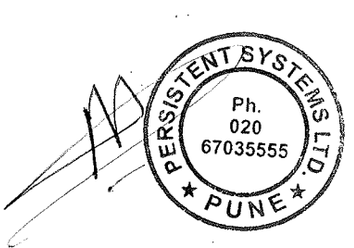
ii. This Scheme being approved by the respective requisite majorities of the of shareholders/creditors of the Transferor Company and the Transferee Company if required under the Act and/ or as may be directed by the Tribunal and the requisite orders of the Tribunal being obtained.

iii. The certified copy of the order of the Tribunal under Section 230 to 232 and other applicable provisions of the Act sanctioning the scheme being filed with the Registrar of Companies, Maharashtra at Pune by Transferor Company and Transferee Company.

b. On the approval of this Scheme by the shareholders of the Transferor Company and the Transferee Company, if required, such shareholders shall also be deemed to have resolved and accorded all relevant consents under the Act or otherwise to the same extent applicable in relation to the merger set out in this Scheme, related matters and this Scheme itself.

19) <u>Effect of Non-Receipt of Approvals/Sanctions</u>

19.1 In the event of any of the said sanctions and approvals referred to in the preceding Clause not being obtained and/ or the Scheme not being sanctioned by the Tribunal or such other Appropriate Authority and/or the Order not being passed as aforesaid within such period or periods as may be agreed upon between the Transferor Company and the Transferee Company by their Board of Directors (and which the Board of Directors of the Transferor Company



and Transferee Company are hereby empowered and authorized to agree to and extend the Scheme from time to time without any limitation) failing which this Scheme shall stand revoked, cancelled and be of no effect, save and except in respect of any act or deed done prior thereto as is contemplated hereunder or as to any rights and/ or liabilities which might have arisen or accrued pursuant thereto and which shall be governed and be preserved or worked out as is specifically provided in the Scheme or as may otherwise arise in law.

19.2 If any part of this Scheme hereof is invalid, held illegal or unenforceable, under any present or future laws, then it is the intention of the parties that such part shall be severable from the remainder of the Scheme, and the Scheme shall not be affected thereby, unless the deletion of such part shall cause this Scheme to become materially adverse to any party, in which case the parties shall attempt to bring about a modification in the Scheme, as will best preserve for the parties the benefits and obligations of the Scheme, including but not limited to such part.

20) Applications/Petitions to the Tribunal

The Transferor Company and the Transferee Company, if required, shall make applications/ petitions to the Tribunal under Sections 230 to 232 and other applicable provisions, of the Act or such other authority in respect of the Transferor Company and Transferee Company, for sanctioning of this Scheme.

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The Transferor Company shall take all necessary steps for sanctioning of this Scheme and for its dissolution without winding up, and apply for and obtain such other approvals, if any, required under the law.

21) Modifications or amendments to the Scheme

21.1 Subject to approval of the NCLT, the Transferor Company and the Transferee Company, through their respective Board of Directors or authorized persons so nominated in that behalf, may assent from time to time on behalf of all the persons concerned to any modifications or amendments or additions to this Scheme subject to approval of the Tribunal or to any conditions or limitations which the Tribunal and/or any other competent authorities, if any, under the law may deem fit and approve of or impose and which the Transferor Company and the Transferee Company may in their discretion deem fit and may resolve all doubts or difficulties that may arise for carrying out this Scheme and do and execute all acts, deeds, matters and things necessary for bringing this Scheme into effect.

The aforesaid powers of the Transferor Company and the Transferee Company may be exercised by their respective Boards of Directors, a Committee of the concerned Board or any Director or Company Secretary or any other officer, authorized in that behalf by the concerned Board of Directors (hereinafter referred to as the 'delegate').

21.2 For the purpose of giving effect to this Scheme or to any modifications or amendments thereof or additions thereto, the delegate of the Transferor Company or the Transferee Company may give and is hereby authorized to

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determine and give all such directions as are necessary including directions for settling or removing any question of doubt or difficulty that may arise and such determination or directions, as the case may be, shall be binding on all parties in the same manner as if the same were specifically incorporated in this Scheme.

22) **Costs, Charges and Expenses**

All costs, charges, taxes, including stamp duties, levies and all other expenses, if any (save as expressly otherwise agreed) of the Transferor Company and the Transferee Company arising out of or incurred in carrying out and implementing this Scheme and matters incidental thereto shall be borne and paid by the Transferee Company.

Certified True Copy
For Persistent Systems Limited

Amit Atre
Company Secretary
ICSI Membership Number: ACS 20507

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Ph. 020 67035555
PUNE

Persistent

CERTIFIED TRUE COPY OF THE RESOLUTION PASSED IN THE MEETING OF THE BOARD OF DIRECTORS OF THE COMPANY HELD ON JUNE 8, 2026, AT PERSISTENT SYSTEMS LIMITED, BOARD ROOM, FIRST FLOOR, 'BHAGEERATH', 402 SENAPATI BAPAT ROAD, PUNE 411016

Approval For Merger of MediaAgility India Private Limited (Wholly Owned Subsidiary -Transferor) by absorption into Persistent Systems Limited (Holding Company -Transferee) subject to approval of Hon'ble National Company Law Tribunal (NCLT), Mumbai and such other competent authorities as may be applicable

RESOLVED THAT pursuant to the provisions of sections 230 to 232 and all other relevant applicable provisions, if any, of the Companies Act, 2013 including any amendment or re- enactment thereof (hereinafter referred to as 'Act') read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, and enabling provisions in the Company's Memorandum and Articles of Association and on the basis of recommendation of the Audit Committee of the Board of Directors of the Company, the consent of the Board of Directors be and is hereby accorded for the Merger by Absorption of M/s. MediaAgility India Private Limited (a Wholly owned Subsidiary of the Company) [the 'Transferor Company'] with Persistent Systems Limited (the 'Company' or 'Transferee Company') being Holding Company of the Transferor Company and the transfer of assets and liabilities of the Transferor Company to the Transferee Company with effect from April 1, 2026, being the 'Appointed Date', in accordance with and in the manner set out in the draft Scheme of Merger by Absorption of M/s. MediaAgility India Private Limited with Persistent Systems Limited (the 'Scheme') as per the draft placed before the Meeting subject to the approval, consents, sanctions and permissions of the Hon'ble National Company Law Tribunal, Mumbai Bench, and such other competent authorities as may be applicable in this regard, and all such other approvals, permissions and sanctions, as may be necessary and subject to such conditions and modifications as may be prescribed or imposed by any of them while granting such approvals, permissions and sanctions, which may be agreed to by the Company.

RESOLVED FURTHER THAT the approval of the Board be and is hereby accorded to the draft Scheme which provides for the terms of Merger by Absorption of the Transferor Company with the Transferee Company and their respective Shareholders and Creditors.

RESOLVED FURTHER THAT Dr. Anand Deshpande, Chairman and Managing Director, Mr. Sandeep Kalra, Executive Director and Chief Executive Officer, Mr. Vinit Teredesai, Executive Director and Chief Financial Officer, Mr. Sanjay Bapat, Corporate Vice President, Finance, Mr. Vinod Mandlik, Senior Vice President, Global Taxation, and Mr. Amit Atre, Company Secretary be and are hereby severally authorised on behalf of the Company to undertake such other acts, things, and deeds incidental thereto, including:

(i) To Finalise, sign, and execute the draft Scheme and make necessary alteration(s), modifications, amendments, revisions, edits, and change(s) and all other actions required to finalize the scheme thereto, as may be required prior to issuing notices of the Scheme and/ or the filing of the Scheme with the concerned authorities.

(ii) To Make or accept any alterations(s) of or modification(s) to the Scheme, as may be required or imposed by the Registrar of Companies, Regional Director, or the Hon'ble National Company Law Tribunal, Mumbai Bench ('NCLT' or 'Tribunal') or other concerned authorities;

(iii) To file applications/scheme with Registrar of Companies, Official Liquidator, the Regional Director and NCLT or such other appropriate authority seeking directions as to convening/dispensing with the meeting of the shareholders/creditors of the Company and where necessary to take steps to convene and hold such meetings as per the directions of the competent authority;

(iv) To finalise, sign, and issue notices for convening of the meetings of members and/ or creditors;

(v) To obtain necessary approvals, in writing or otherwise, from members and creditors for giving effect to the Scheme;

PERSISTENT SYSTEMS LTD. Ph. 020 67035555 PUNE

(vi) To finalise, sign, and execute and file necessary applications as may be required with the Central Government, Registrar of Companies, Official Liquidator, Regional Director, Income Tax Authorities, Securities and Exchange Board of India (SEBI), Stock Exchanges and other concerned authorities, if necessary;

(vii) To finalise, sign and execute and file necessary application and/or petition as may be required, before the NCLT or other authorities;

(viii) To file affidavits, petitions, pleadings, applications or any other proceedings incidental or deemed necessary or useful in connection with the above proceedings and to engage Counsels, Advocates, Solicitors, Chartered Accountants and other professionals and to sign and execute vakalatnama wherever necessary, and sign and issue public advertisements and notices;

(ix) To sign all applications, petitions, documents, relating to the Scheme or delegate such authority to another person by a valid Power of Attorney;

(x) To approve and finalise all documents, advertisements, as may be, required to be published in connection with the Scheme;

(xi) To represent the Company before the Central Government, NCLT, Regional Director, Official Liquidator, Registrar of Companies or any other authorities, as may be required;

(xii) To take all steps for the transfer of the business including assets and liabilities of the Transferor Companies to the Company pursuant to the Scheme;

(xiii) To take all other steps and to do, perform, and execute all such acts, deeds, matters and things necessary to give effect to the Scheme and for that purpose to sign, execute and file applications, affidavits, pleadings, declarations, vakalatnama, e-forms, statements and such other deeds, documents and writings as may be necessary in that behalf; and

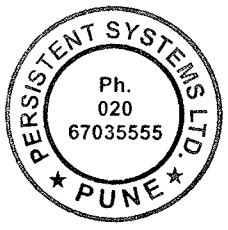
(xiv) To settle any question or difficulty that may arise with regard to the implementation of the Scheme, and to give effect to this resolution.

(xv) To do all further acts, deeds, matters, and things as may be necessary, proper or expedient, to give effect to the Scheme and for matters connected therewith or incidental thereto.

RESOLVED FURTHER THAT Dr. Anand Deshpande, Chairman and Managing Director, Mr. Sandeep Kalra, Executive Director and Chief Executive Officer, and Mr. Vinit Teredesai, Executive Director and Chief Financial Officer, Mr. Sanjay Bapat, Corporate Vice President, Finance, Mr. Vinod Mandlik, Senior Vice President, Global Taxation, and Mr. Amit Atre, Company Secretary be and is hereby authorised to file a certified copy of this Resolution with all concerned Government Authorities including the Central Government, the NCLT, Regional Director, Official Liquidator, and Registrar of Companies, Pune.

Certified True Copy

For **Persistent Systems Limited**



Amit Atre
Company Secretary
ICSI Membership Number: ACS 20507

Date: June 29, 2026
Place: Pune

MEDIAAGILITY INDIA PRIVATE LIMITED

CIN: U72200PN2010PTC256429

Registered Office: 'Bhageerath', Vetal Chowk, 402 E Senapati Bapat Road, Gokhale Nagar, Haveli, Pune, Maharashtra, India, 411016

Email Id: accounts@mediaagility.com| **Contact:** +91 98991 82847

CERTIFIED TRUE COPY OF THE RESOLUTION PASSED AT THE MEETING OF THE BOARD OF DIRECTORS OF THE COMPANY HELD ON FRIDAY, JUNE 5, 2026, AT 'BHAGEERATH', 402 SENAPATI BAPAT ROAD, PUNE, MAHARASHTRA, INDIA, 411016

Approved the scheme of Merger (By Absorption) of MediaAgility India Private Limited ('the Company'/Transferor Company) with Persistent Systems Limited ('PSL'/Transferee Company)

RESOLVED THAT pursuant to the provisions of Sections 230 to 232 and all other relevant applicable provisions, if any, of the Companies Act, 2013 including any amendment or re- enactment thereof (hereinafter referred to as 'Act') read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, and enabling provisions in the Company's Memorandum and Articles of Association and subject to requisite approval from the shareholders/creditors of the Company and subject to sanction of Hon'ble National Company Law Tribunal ('NCLT' or 'Tribunal') and such other regulatory authorities , if any, and all such other approvals, permissions and sanctions, as may be necessary and subject to such conditions and modifications as may be prescribed or imposed by any of them while granting such approvals, permissions and sanctions, which may be agreed to by the Company,, the consent of the Board of Directors be and is hereby accorded for the Merger by Absorption of M/s. MediaAgility India Private Limited (a Wholly owned Subsidiary of the Company) [the 'Company'/'Transferor Company'] with Persistent Systems Limited (the'Transferee Company') being Holding Company of the Transferor Company and the transfer of assets and liabilities of the Transferor Company to the Transferee Company with effect from April 1, 2026, being the 'Appointed Date', in accordance with and in the manner set out in the draft Scheme of Merger by Absorption of M/s. MediaAgility India Private Limited with Persistent Systems Limited (the 'Scheme') as per the draft placed before the Meeting.

RESOLVED FURTHER THAT the approval of the Board be and is hereby accorded to the draft Scheme which provides for the terms of Merger by Absorption of the Transferor Company with the Transferee Company and their respective Shareholders and Creditors.

RESOLVED FURTHER THAT Mr. Sanjay Bapat, Ms. Nayana Bhandari, Mr. Shekhar Patankar, Directors of the Company and Mr. Amit Atre (Company Secretary of Persistent Systems Limited) be and are hereby severally authorised on behalf of the Company to undertake such other acts, things, and deeds incidental thereto, including:

(i) To finalize, sign, and execute the draft Scheme and make necessary alteration(s), modifications, amendments, revisions, edits, and change(s) and all other actions required to finalize the scheme thereto, as may be required prior to issuing notices of the Scheme and/ or the filing of the Scheme with the concerned authorities;

(ii) To make or accept any alterations(s)/ change(s) to the Scheme, as may be expedient or necessary which does not materially change the substance of the Scheme; particularly for satisfying the requirements or conditions imposed by the Central Government or the NCLT or any other competent authority;

(iii) To file applications/scheme with Registrar of Companies, Official Liquidator and with the Regional Director or NCLT or such other appropriate authority seeking directions as to convening/dispensing with the meeting of the shareholders/creditors of the Company and where necessary to take steps to convene and hold such meetings as per the directions of the competent authority;

(iv) To finalize, sign and execute and file necessary application and/or petition as may be required, before the NCLT or other authorities;

(v) To finalize, sign, and issue notices for convening of the meetings of members and/ or creditors;

(vi) To obtain necessary approvals, in writing or otherwise, from members and creditors for giving effect to the Scheme;

MediaAgility India Pvt. Ltd. PUNE

(vii) To finalize, sign, and execute and file necessary applications as may be required with the Central Government, Registrar of Companies, Official Liquidator, Regional Director, Income Tax Authorities, Securities and Exchange Board of India (SEBI), Stock Exchanges and other concerned authorities, if necessary;

(viii) To file affidavits, petitions, pleadings, applications or any other proceedings incidental or deemed necessary or useful in connection with the above proceedings and to engage Counsels, Advocates, Solicitors, Chartered Accountants and other professionals and to sign and execute vakalatnama wherever necessary, and sign and issue public advertisements and notices;

(ix) To sign all applications, petitions, documents, relating to the Scheme or delegate such authority to another person by a valid Power of Attorney;

(x) To approve and finalize all documents, advertisements, as may be, required to be published in connection with the Scheme;

(xi) To represent the Company before the Central Government, Regional Director, NCLT, Official Liquidator, Registrar of Companies or any other authorities, as may be required;

(xii) To take all steps for the transfer of the business including assets and liabilities of the Transferor Companies to the Company pursuant to the Scheme;

(xiii) To take all other steps and to do, perform, and execute all such acts, deeds, matters and things necessary to give effect to the Scheme and for that purpose to sign, execute and file applications, affidavits, pleadings, declarations, vakalatnama, e-forms, statements and such other deeds, documents and writings as may be necessary in that behalf;

(xiv) To settle any question or difficulty that may arise with regard to the implementation of the Scheme, and to give effect to this resolution; and

(xv) To do all further acts, deeds, matters, and things as may be necessary, proper or expedient to give effect to the Scheme and for matters connected therewith or incidental thereto.

RESOLVED FURTHER THAT Mr. Sanjay Bapat, Ms. Nayana Bhandari, Mr. Shekhar Patankar, Directors of the Company and Mr. Amit Atre (Company Secretary of Persistent Systems Limited) be and is hereby authorised to file a certified copy of this Resolution with all concerned Government Authorities including the Central Government, the NCLT, Regional Director, Official Liquidator, and Registrar of Companies, Pune and furnish the same to whomsoever concerned.

Date of passing this resolution: Friday, June 5, 2026

Certified True Copy

For **MediaAgility India Private Limited**

Sanjay Bapat
Director
DIN: 07862775

MediaAgility India Pvt. Ltd. PUNE

Date : June 29, 2026
Place : Pune